

Amendment No. 1 to HB2136

Terry
Signature of Sponsor

AMEND Senate Bill No. 2556

House Bill No. 2136*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-403(d), is amended by deleting "If any substance" and substituting "Except as provided in subdivision (d)(2), if a substance".

SECTION 2. Tennessee Code Annotated, Section 39-17-403(d), is amended by designating the existing language as subdivision (d)(1) and adding the following as a new subdivision:

(2) Notwithstanding subdivision (d)(1), if a compound, mixture, or preparation is approved by the United States food and drug administration and designated or scheduled by the federal drug enforcement administration pursuant to 21 U.S.C. § 812 and 21 CFR Part 1308 and is not scheduled under this part as the approved compound, mixture, or preparation, then that compound, mixture, or preparation is deemed scheduled in the same schedule that the compound, mixture, or preparation is scheduled under the federal schedules of controlled substances.

SECTION 3. Tennessee Code Annotated, Section 39-17-403(g), is amended by adding the following at the end of the subsection:

A designation or scheduling that occurs pursuant to subdivision (d)(2) is effective as provided in subdivision (d)(2) and is not contingent on the annual revision and republishing of schedules pursuant to this subsection (g).

SECTION 4. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) Notwithstanding a law to the contrary, a healthcare prescriber licensed under this title who is authorized to prescribe controlled substances may prescribe a drug product that has been scheduled pursuant to § 39-17-403(d)(2) immediately upon the effective date of such scheduling if:

(1) The drug product is approved by the United States food and drug administration;

(2) The drug product is in a schedule other than Schedule I by operation of § 39-17-403(d); and

(3) Prescribing the drug product is within the healthcare prescriber's lawful scope of practice and complies with all applicable state and federal requirements.

(b) This section does not expand or limit a healthcare prescriber's scope of practice or authorize the prescribing of a drug product in a manner inconsistent with state or federal law.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.